

2:00 PM

LINE 7

24-CIV-03224

ZOILA GARCIA, INDIVIDUALLY, AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED VS
BAY AREA HERBS & SPECIALTIES, LLC

ZOILA GARCIA, INDIVIDUALLY, AND ON BEHALF OF ALL OTHERS
SIMILARLY SITUATED
BAY AREA HERBS & SPECIALTIES, LLC

SEUNG YANG

JOHN F. HYLAND

UNOPPOSED MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

TENTATIVE RULING:

The motion for final approval is continued until November 17, 2026 at 2:00 p.m.

2:00 PM

LINE 8

24-CIV-03224

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BAY AREA HERBS & SPECIALTIES, LLC

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JOHN F. HYLAND

MOTION FOR ATTORNEY FEES

TENTATIVE RULING:

The court denies without prejudice plaintiff's counsel request for attorneys' fees, costs, and service awards. The court continues the motion to November 17, 2026 at 2:00 p.m. Plaintiffs' counsel shall file and serve supplemental pleadings on or before October 27, 2026. Plaintiffs are also reminded to provide courtesy copy binders to the court in compliance with paragraph 11 of the Case Management Order No. 1 filed June 18, 2024. The binder shall contain the papers for this motion and the supplemental motion. Counsel's failure to comply with this order for this motion has increased the court's workload.

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503.)

In reviewing the evidence submitted, the court finds that plaintiff's counsel makes no attempt to show that the hourly rates are reasonable for San Mateo County where this case is venued. Counsel must demonstrate that the rates are reasonable for San Mateo County. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) Further, counsel requests a blended rate of \$800.00, but provide no facts to support how that blended rate was calculated.

The court also has concerns regarding the work performed. There is no discussion on why there needed to be four attorneys on the case and how the work was allocated. Some of the work appears duplicative, some of the time for tasks appears potentially excessive, and it appears that some of the tasks could have been performed by attorneys that charge at a lower rate. Plaintiffs' counsel needs to provide further facts. Further, the court has concerns regarding the accuracy of the time entries attached as Exhibit 3 to the declaration of Tiffany Hyun. For example, there is no time for the hearing on the motion to compel arbitration and case management conference on September 24, 2024 and, in fact, no entries at all regarding the motion to compel arbitration despite the fact that plaintiff signed a stipulation signed on July 15, 2024 and filed July 19, 2024 for an order regarding a briefing schedule for the motion to compel arbitration, plaintiffs filed an opposition on August 21, 2024 and provided supplemental briefing on October 15, 2024.
